

December 14, 2007
05-cv-01917-RPM

Court states it received a notice that the jury has reached a verdict.

Jurors present.

Presiding juror states jury has reached a verdict.

Court reads jury's verdict.

VERDICT

We, the jury, are all agreed upon the following answers to the Court's questions.

1. What amount of damages did the plaintiff Adept Computer Solutions, Inc., prove by a preponderance of the evidence were caused by the breach of the license agreements between it and the defendant Zoll Data Systems?

\$150,660.21

2. What amount of damages in the categories shown did the plaintiff Adept Computer Systems prove by a preponderance of the evidence resulted from the conduct of the defendant Zoll Data Systems that infringed the plaintiff's copyrighted material in its Street Wizard software?

(a) Adept's losses sustained as a result of defendant's infringement, if any.

\$ 0 (None)

(b) Profits obtained by Zoll from sales of its Nomad product attributed to its unauthorized use of Adept's copyrighted Street Wizard software.

\$243,750.00

3. Did the plaintiff, Adept Computer Solutions prove by a preponderance of the evidence that the defendant, Zoll Data Systems, removed Copyright Management Information of the copyrighted Street Wizard software in violation of the Digital Millennium Copyright Act?

Yes

If the answer is yes, then state the number of such violations?

47

DATED: 12/14/2007

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Counsel decline polling of jurors.
Court thanks jurors for their service.
Jurors discharged.

Court shows counsel and parties Verdict form.

Discussion regarding duplication of damages, statutory damages, prejudgment interest and entry of judgment.
Counsel state there are no duplication of damages.

Argument by Mr. Forbes.

ORDERED: DMCA statutory damages are \$2,500.00 per violation (47) for a total amount of \$117, 500.00.

ORDERED: Briefs on prejudgment interest and attorney fees are to be filed by December 26, 2007 and responses by January 2, 2008.

ORDERED: Entry of judgment withheld pending filing of briefs.

Court signs Stipulation and Order Regarding Custody of Exhibits and Depositions.

2:25 p.m. Court in recess.

Clerk's Note: Verdict form retained pursuant to General Order 2007-3.
Exhibit lists attached.
Exhibits and depositions returned to counsel.

Trial concluded. Total time: 31 min.